Local Government

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Introduction

✓ Under **Part IX (Articles 243 to 243O)** for rural areas (Panchayats) and **Part IXA (Articles 243P to 243ZG)** for urban areas (Municipalities)

✓ **Panchayati Raj is a system of local self-government in rural India.**

✓ It ensures **grassroots democracy, economic development,** and **social justice.**

✓ **Function:** They resolved disputes and provided a forum for village-level decision-making.

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Historical Perspective:

Ancient Period

➡️ **Gramini:** Village administrator during Vedic period
➡️ **Sabha:** Assembly for agriculture & land matters
➡️ **Samiti:** Broader people's assembly with judicial functions

Medieval Period

➡️ **Centralization of Power:** Strong local bodies declined
➡️ **District-Level Administration:** Local governance restricted to district officials
➡️ **Village Communities:** Some local autonomy survived despite central rule

British Period

➡️ **Regulation of 1816:** ⚖️ Gave judicial powers to village panchayats
➡️ **Mayo's Resolution (1870):** 🔧 Strengthened powers & duties of local bodies
➡️ **Bengal Village Chowkidari Act (1870):** District Magistrates empowered to set up panchayats
➡️ **Lord Ripon's Resolution (1882):** 📜 Called the "Magna Carta" of Local Self-Government — Revival based on ancient traditions
➡️ **Morley-Minto Reforms (1909):** Elections expanded in local bodies after Royal Commission report (1907)
➡️ **Montagu-Chelmsford Reforms (1919):** Introduced Dyarchy — local governance transferred to Indian ministers at provincial level

Gandhi's Vision for Local Self-Governments



Backbone of Democracy: Local governance as the foundation of India's democracy.

Decentralized Decision-Making: Empowering communities to make decisions.

Self-Rule: Villages should be self-sufficient and govern themselves.

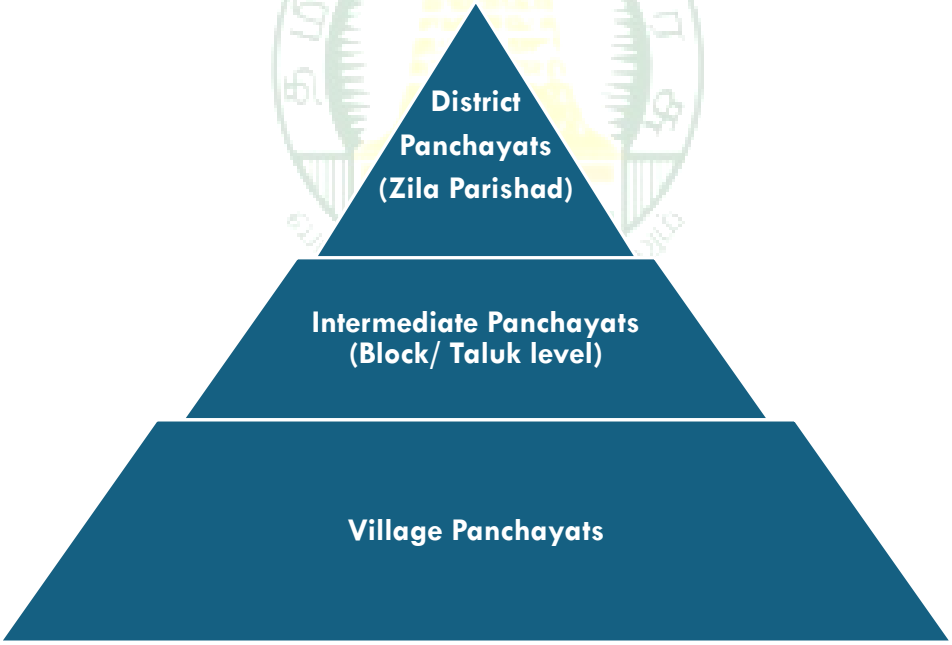
Participative Governance: Local bodies as platforms for active public participation.

Accountability: Panchayats must be transparent, responsive, and accountable.

India's Constitution, through the **73rd and 74th Amendments (1992)**, institutionalized Local Self-Governments:

- **73rd Amendment**: Panchayats for rural areas.
- **74th Amendment**: Municipalities for urban areas.

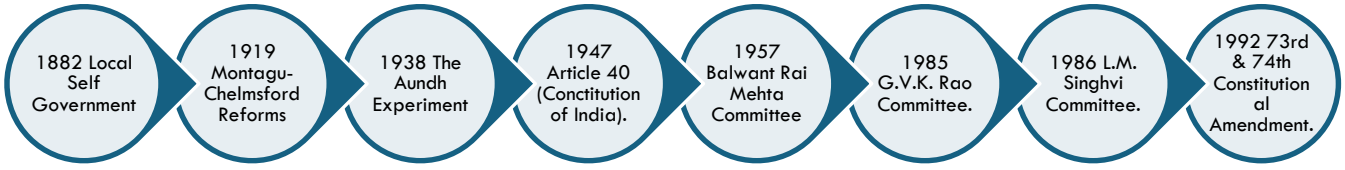
Three-tier structure of Panchayati Raj System (Rural Governance)



Post-Independence Evolution

Year	Development
1951	Community Development Program launched to promote rural development
1953	First Panchayati Raj elections held in Rajasthan
1959	Rajasthan passes the Panchayati Raj Act, providing a legal framework for PRIs
1962	Central government establishes the Ministry of Community Development and Cooperation
1992	National Panchayati Raj Day established to recognize PRIs
1993	73rd Constitutional Amendment Act passed, giving constitutional status to PRIs
1996	Panchayati Raj Extension to Scheduled Areas Act (PESA) passed, empowering tribal areas
2000	Launch of National Gram Swaraj Abhiyan to strengthen decentralized governance
2011	National Rural Livelihoods Mission launched to empower women and marginalized groups through PRIs

Panchayati Raj: A Timeline



Major Committees on Local Self-Governments

Committee	Year	Key Recommendations
Balwant Rai Mehta Committee	1957	- Three-tier system (village, intermediate, district) - Delegation of financial and decision-making powers to PRIs
Ashok Mehta Committee	1977	- Stronger PRIs - Greater role in planning and implementing development projects
G.V.K. Rao Committee	1985	- More autonomy to PRIs - Taxation powers - Emphasized accountability to the people
L.M. Singhvi Committee	1986	- Constitutional recognition for PRIs and urban local bodies
P.K. Thungon Committee	1989	- Constitutional recognition - Structured devolution of powers
Second Administrative Reforms Commission	2007	- Principle of subsidiarity - Clear division of responsibilities among different tiers

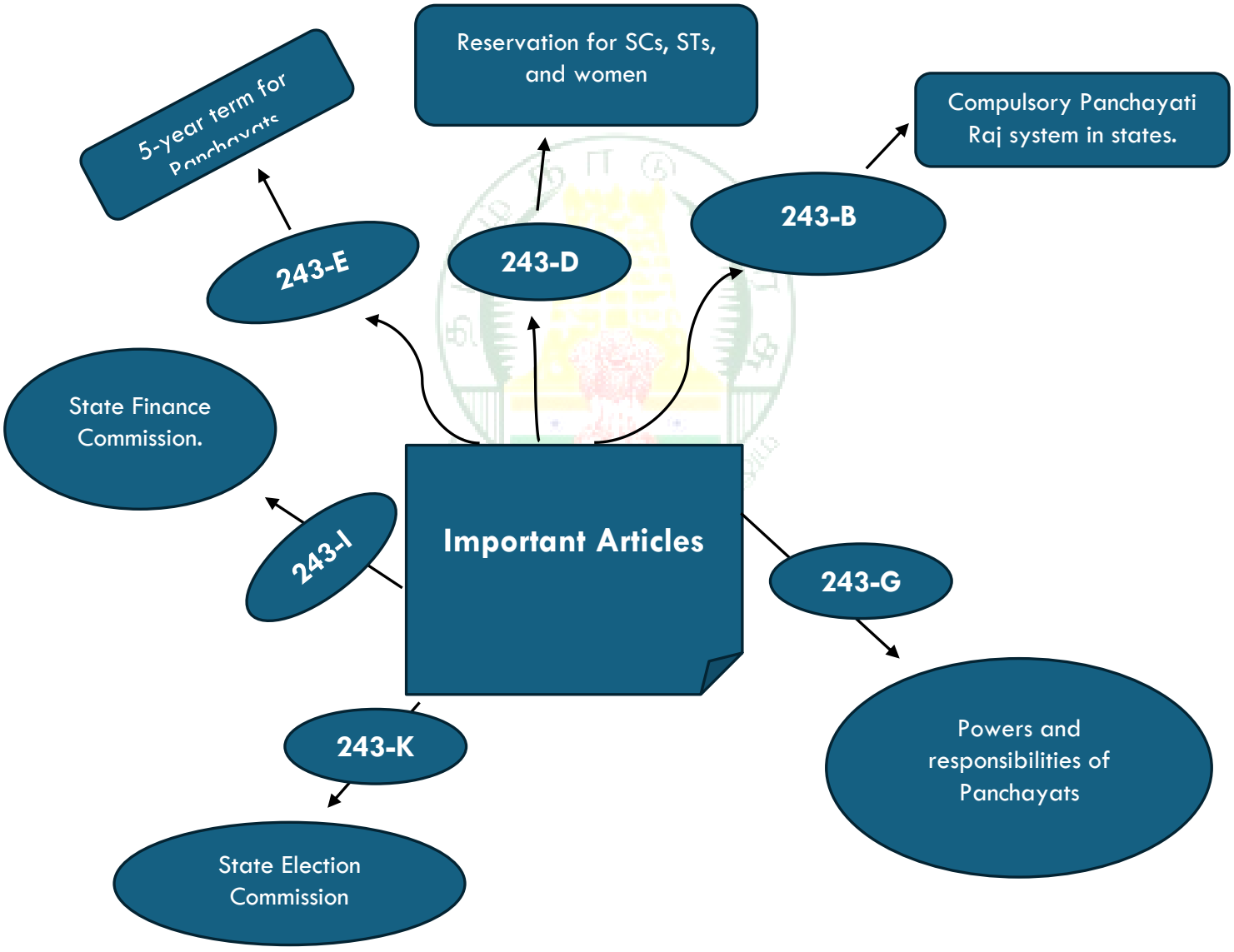
73rd Constitutional Amendment Act, 1992

(Effective from **April 24, 1993** — celebrated as **National Panchayati Raj Day**)

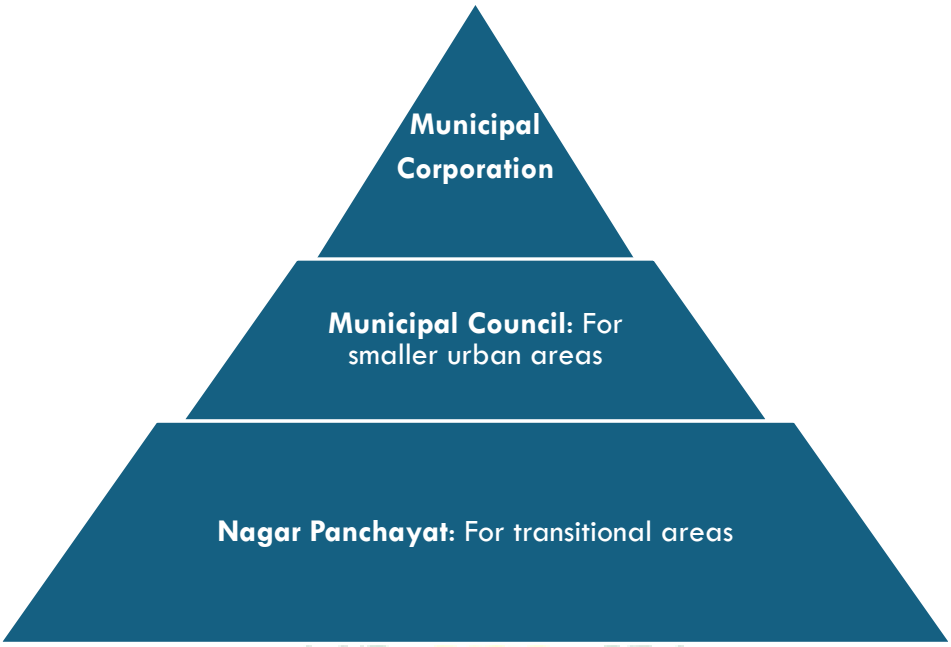
Feature	Details
Constitutional Status	Part IX, added to Constitution.
Three-tier system	Gram Panchayat, Panchayat Samiti (Intermediate), Zila Parishad.
Gram Sabha	Village assembly of registered voters; core institution.
Reservation	SC, ST, and at least 1/3 seats for women at all levels.
Duration	5 years; elections within 6 months of dissolution.

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State Election Commission	Conducts free and fair Panchayat elections.
State Finance Commission	Every 5 years to review Panchayat finances.
Powers and Functions	States to endow Panchayats with necessary powers (planning for economic development and social justice).



Types of Municipalities



Salient Features - 74th Constitutional Amendment Act

Feature	Details
Types of Municipalities	- **Nagar Panchayat:** For transitional areas - **Municipal Council:** For smaller urban areas - **Municipal Corporation:** For larger urban areas *(Exception: Industrial townships)*
Composition	- Members elected directly by the people - Municipal areas divided into **wards**
Wards Committees	- For municipalities with population **3 lakh or more** - One or more wards per committee
Other Committees	- State legislature can form additional committees - Chairpersons can be municipality members
Reservation of Seats	- SC/ST reservation in proportion to population - 1/3rd seats reserved for **women** - Reservation for **Backward Classes** permitted

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Feature	Details
Duration of Municipalities	- **5-year** term - Early dissolution possible - Fresh elections fill the remaining term
Disqualifications	- As per state legislature election laws - Age: Eligible from **21 years** (not 25 years)
State Election Commission	- Conducts municipal elections - Manages electoral rolls, superintendence, direction, and control
Powers and Functions	- Economic development and social justice plans - Implement Central & State schemes - Employment generation and development activities
Finances	- Tax collection authority - Grants-in-aid from the State fund - Creation of municipal funds
Finance Commission	- Reviews municipal finances - Recommends tax-sharing principles - Auditing of municipal accounts
Audit of Accounts	- State legislature frames rules for auditing
Application to Union Territories	- Provisions apply but President can modify
Exempted Areas	- **Scheduled Areas** (10 states) and **Tribal Areas** (Assam, Meghalaya, Tripura, Mizoram) - **Darjeeling Gorkha Hill Council** exempted
District Planning Committee	- Consolidates Panchayat and Municipality plans - 4/5th members elected by Panchayat/Municipality members
Metropolitan Planning Committee	- For metropolitan areas (population 10 lakh+) - 2/3rd members elected by municipalities and panchayats

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Important Articles

- Article 243Q -Constitution of Municipalities (Nagar Panchayat, Municipal Council, Municipal Corporation)
- Article 243R - Composition of Municipalities; members directly elected from **wards**
- Article 243T - Reservation of seats for SC, ST, Women, and Backward Classes in Municipalities
- Article 243U- **Duration** of Municipalities (5 years)
- Article 243W - Powers, authority, and responsibilities of Municipalities (urban planning, development, etc.)
- Article 243X - Legislature's power to specify matters relating to **tax imposition**
- Article 243Y - Constitution of **State Finance Commission** for municipal finance review
- Article 243ZA - Constitution of **State Election Commission** to conduct municipal elections
- Article 243ZE - Constitution of **Metropolitan Planning Committees** for metropolitan regions

PESA Act, 1996

Background & Purpose

- Enacted on **24 December 1996**.
- Extends Panchayats to **Fifth Schedule Areas**.
- Response to **tribal demands** for **autonomy**.
- Inspired by **73rd and 74th Constitutional Amendments**.
- Aim: **Self-rule**, **protect tribal rights** over **land** and **forests**.

Major Provisions

Gram Sabha:
Central to decision-making.
Identifies and implements development projects.

Applies to **Scheduled Areas** (tribal-majority regions).
Empowers **Gram Sabha** (village assembly) as a key institution.

Village-level Institutions:
Gram Panchayat, Gram Sabha, Panchayat Samiti to deliver services.

Major Provisions

Powers and Functions:
Manage **natural resources** (land, water, forests).
Regulate **economic activities** (e.g., minor minerals, markets).

Consultation:
Mandatory consultation with Gram Sabha before any project.
Funds:
Funds directly transferred to Gram Sabha/Panchayat for projects.

Land Rights:
Protection of land ownership.
Consent required for land acquisition/transfer.
Cultural Protection:
Preserve tribal customs, traditions, and **social practices**

Panchayats (Rural Local Bodies)	**Eleventh Schedule** (73rd Amendment)	**29 Functional Items**	Agriculture, Land improvement, Minor irrigation, Animal husbandry, Fisheries, Social forestry, Small-scale industries, Rural housing, Drinking water, Roads, Electrification, Poverty alleviation, Education, etc.
Municipalities (Urban Local Bodies)	**Twelfth Schedule** (74th Amendment)	**18 Functional items**	Urban planning, Water supply, Public health, Sanitation, Solid waste management, Slum improvement, Urban poverty alleviation, etc.

National Panchayati Raj Day
🗓️ **24 April**

"When the panchayat raj is established, public opinion will do what violence can never do."
— **Mahatma Gandhi**